

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda	Team: Squad #10	CCRB Case #: 201604426	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/13/2015 11:16 AM	Location of Incident: Central Park North Meadow Recreational Center	18 Mo. SOL 12/13/2016	Precinct: 483		
Date/Time CV Reported Mon, 05/23/2016 2:35 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 05/23/2016 2:35 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Christophe Morales	05863	937137	CPK PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Jennifer Hernandez	23568	945818	CPK PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Christophe Morales	Discourtesy: Police Officer Christopher Morales acted discourteously toward § 87(2)(b) based upon the physical disability of § 87(2)(b)			A . Unsubstantiated	

Case Summary

On June 13, 2015, at approximately 11:16 a.m., § 87(2)(b) was practicing tennis alone at the handball courts at the Central Park North Meadow Recreational Center, in Manhattan. § 87(2)(b) is hearing impaired, but he did not have his hearing aid with him at the time of the incident. An individual named § 87(2)(b) and three unknown children entered the court where § 87(2)(b) was playing. § 87(2)(b) approached § 87(2)(b) and told him that he needed to use the court to practice soccer with his children. § 87(2)(b) refused to surrender the court and § 87(2)(b) proceeded to call the police. PO Christopher Morales and PO Jennifer Hernandez from the Central Park Precinct responded to the scene. PO Morales approached § 87(2)(b) and asked him why he did not stop practicing tennis. § 87(2)(b) replied that he was unable to hear whatever PO Morales was saying to him from a distance due to his hearing condition. PO Morales allegedly said, “Oh, now you don’t hear me?!” in a mocking tone to § 87(2)(b). § 87(2)(b) (Allegation A). PO Morales allegedly turned his head away from § 87(2)(b) and continued speaking to § 87(2)(b) preventing him from hearing what the officer was saying. PO Morales issued a summons to § 87(2)(b) for § 87(2)(a) 160.50. This case has video footage captured by § 87(2)(b) which can be found in IA # 71, and depicts § 87(2)(b) hitting tennis balls against a wall in close proximity to § 87(2)(b).

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation. On June 2, 2016, the NYC Comptroller’s Office confirmed that § 87(2)(b) filed a Notice of Claim with the City for \$1 million in connection with this incident (See Board Review 1). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer Histories

- § 87(2)(b) has filed one prior CCRB complaint. § 87(2)(b)
- PO Morales has been a member of the service for 11 years and has been the subject in one prior CCRB complaint filed against him involving two allegations. There are no substantiated CCRB allegations against PO Morales. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

PO Morales acknowledged interacting with § 87(2)(b). PO Morales’s name and tax registry number are also written on the summons that § 87(2)(b) received.

Recommendations

Allegation A- Discourtesy: Police Officer Christopher Morales acted discourteously toward § 87(2)(b) based upon the physical disability of § 87(2)(b)

It is not in dispute that PO Morales and PO Hernandez responded to a dispute between § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) testified that an individual, whom the investigation identified as § 87(2)(b) entered the handball court with his children and began playing soccer. § 87(2)(b) told § 87(2)(b) that playing soccer in the handball courts was a violation of park rules. § 87(2)(b) grabbed § 87(2)(b)'s tennis racket, but § 87(2)(b) pulled his racket back. § 87(2)(b) called 311 to request a park ranger to the scene, but he could not hear what the operator was saying because he did not have his hearing aid. § 87(2)(b) called 911, but § 87(2)(b) did not hear what he said to the 911 operator. PO Morales and PO Hernandez responded to the scene within 15 minutes of the call. PO Morales was identified through the summons that he later issued to § 87(2)(b). PO Morales approached § 87(2)(b) and asked him why he did not stop practicing tennis. § 87(2)(b) told PO Morales that he did not hear what PO Morales was saying from a distance because he has a hearing disability and did not have his hearing aid. § 87(2)(b) said that he had to move closer to PO Morales in order to hear him. PO Morales allegedly said in a mocking tone, "Oh, now you don't hear me?!" to § 87(2)(b). PO Morales also allegedly turned his head away when speaking to § 87(2)(b) preventing him from hearing what the officer was saying. § 87(2)(b) asked PO Morales why he was being stopped, but PO Morales gave no response. PO Morales issued a summons to § 87(2)(b) for § 87(2)(a) 160.50

§ 87(2)(b) denied the accusations described in the summons. § 87(2)(b) stated that he was practicing tennis against the wall, but stopped when he saw PO Morales approaching him. § 87(2)(b) left the court after receiving the summons (See Board Review 4).

§ 87(2)(a) Gen.Mun. §50-H(3)

§ 87(2)(b) stated that he and his children were at the court first when § 87(2)(b) arrived and asked them to leave. § 87(2)(b) refused to yield the court and stood beside the wall, in front of § 87(2)(b). § 87(2)(b) began practicing tennis and hitting tennis balls against the wall. Some of the tennis balls hit § 87(2)(b) who proceeded to call 911. § 87(2)(b) did not hit any of the responding officers with tennis balls. § 87(2)(b) was issued a summons by one of the officers. § 87(2)(b) did not see either

officer at the scene ridicule § 87(2)(b) for a hearing disability. § 87(2)(b) stated that the officers were very courteous towards § 87(2)(b) (See Board Review 10).

§ 87(2)(b) provided video footage that he took at the scene prior to the officers' arrival. The video was captured while § 87(2)(b) was sitting in front of the handball court and it depicts § 87(2)(b) on the opposite end of the court, hitting tennis balls against the wall. The video does not capture any of the tennis balls hitting § 87(2)(b) head-on, but § 87(2)(b) alleged that some of the tennis balls hit him from behind after bouncing off the wall. § 87(2)(b) did not have video footage of the officers who arrived at the scene (See Board Review 11 and 12).



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An Event Summary yielded negative results for an Event regarding this incident (See Board Review 6).

PO Morales testified that he and PO Hernandez responded to a call for a 10-39 (other crime in progress) at the location. When they arrived, PO Morales observed § 87(2)(b) using a tennis racquet to repeatedly hit a tennis ball against a wall that § 87(2)(b) was standing against. § 87(2)(b) was with a female child. PO Morales walked towards § 87(2)(b) and asked § 87(2)(b) approximately five times to stop hitting the tennis ball. § 87(2)(b) did not comply initially and continued hitting the ball, nearly hitting § 87(2)(b) and PO Morales, who were near the wall. After PO Morales asked him to stop for the fifth time, § 87(2)(b) stopped hitting the ball. PO Morales spoke with § 87(2)(b) first, but § 87(2)(b) kept interrupting their conversation. PO Morales told § 87(2)(b) that he could only speak with one person at a time. PO Morales determined after speaking with § 87(2)(b) that § 87(2)(b) and the child were using the court before § 87(2)(b) arrived. Once PO Morales finished speaking with § 87(2)(b) he went to speak to § 87(2)(b). § 87(2)(b) stated that he was hearing impaired and was unable to understand PO Morales. PO Morales asked § 87(2)(b) "You can't hear me?" just for clarification. § 87(2)(b) accused PO Morales of treating him in a discriminatory manner, due to his disability. PO Morales kept trying to speak to § 87(2)(b) so he could hear, but § 87(2)(b) was behaving erratically by moving around, turning his body, and speaking to PO Hernandez or § 87(2)(b) instead of focusing on the conversation with PO Morales. PO Morales issued a summons to § 87(2)(b) for § 87(2)(a) 160.50. PO Morales denied saying, "Oh, now you don't hear me?!" to § 87(2)(b) or humiliating or mocking him for his hearing disability (See Board Review 7).

The summons that PO Morales issued stated the following: "§ 87(2)(a) 160.50

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) (See Board Review 8)

